

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

AFFIDAVIT IN SUPPORT OF APPLICATION TO PROCEED IN FORMA PAUPERIS

<i>Petitioner</i>	<i>v. Respondent</i>	
Name	Name	File
Street Address (including Apt)	Street Address (including Apt)	
P.O. Box Number	P.O. Box Number	Petition Number
City/State/ Zip Code	City/State/Zip Code	
Attorney Name	Attorney Name	

I, _____, being first duly sworn, depose and say that I am
the ☐ Petitioner ☐ Respondent in a Petition/Motion for _____.
I swear or affirm that I am unable to pay the costs of this proceeding. In support of my application to waive
the Court fees and costs, I swear or affirm to the following information:

1. I am presently employed: ☐ Yes ☐ No

If yes, please answer the following:

My employer is: _____

My employer's address is: _____

I am paid: ☐ weekly ☐ every other week ☐ 2x/month ☐ monthly.

I bring home \$_____ per pay period.

I have attached my paystubs or other proof of income.

If no, please answer the following:

The name of my last employer is: _____

The address of my last employer is: _____

I was last employed on: _____

I am no longer employed because: _____

2. I am receiving the following government benefits. **I am attaching proof of the benefits.**

☐	SSDI/SSI	Amount	\$	per	_____
☐	TANF	Amount	\$	per	_____
☐	Food Stamps	Amount	\$	per	_____
☐	Social Security	Amount	\$	per	_____
☐	Other _____	Amount	\$	per	_____

3. I receive child support ☐ Yes ☐ No

From: _____ Amount \$_____ per _____

4. I receive alimony ☐ Yes ☐ No

From: _____ Amount \$ _____ per _____ .

5. I have received the following gifts in the last 12 months:

Amount \$ _____ From: _____ .

Amount \$ _____ From: _____ .

6. I have the following assets:

- ☐ Real Estate Value \$ _____ Mortgage Balance \$ _____ Jointly Owned Yes ☐ No ☐
- ☐ Vehicles Value \$ _____ Loan Balance \$ _____ Jointly Owned Yes ☐ No ☐
- Year _____ Make _____ Model _____
- ☐ Bank Accounts Value \$ _____
- ☐ Stocks, Bonds, etc. Value \$ _____
- ☐ Other: _____ Value \$ _____

7. I am paying the following regular monthly expenses (Add an addendum if necessary):

Debt/Expense	Monthly Amount

8. Do you share expenses with another adult? ☐ Yes ☐ No

Is this person your spouse? ☐ Yes ☐ No

Is this person the opposing party in this matter? ☐ Yes ☐ No

If no, how much is your spouse's take-home income? Amount \$ _____ per _____ .

What is the name of your spouse's employer or entity from which your spouse's income is received?

9. I have the following dependents:

Name	Age	Does the dependent reside with you?
		☐ Yes ☐ No
		☐ Yes ☐ No
		☐ Yes ☐ No
		☐ Yes ☐ No

I understand that if I do not answer all the questions on this application **AND** do not provide proof of my income, my application may be denied.

I swear or affirm that the above information is true and correct and is made under penalty of perjury.

DATE

PRINT NAME

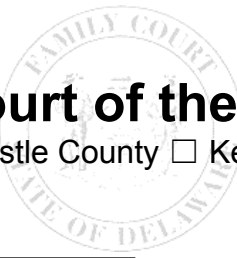
SIGNATURE

Sworn to and subscribed before me
this

_____ day of _____ , _____

Clerk of Court/ Notary Public

Date



The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

Petitioner,

VS.

Respondent

File Number: _____

Petition Number: _____

ORDER ON APPLICATION TO PROCEED *IN FORMA PAUPERIS*

The Court has reviewed the Applicant's application and, if necessary, has questioned the Applicant under oath. Applicant's application is hereby:

- ☐ Granted, as to: ☐ filing fee(s)* ☐ transcript costs
☐ Unless otherwise ordered, publication, if necessary, will be through Family Court's legal notices website

☐ Granted in part. _____

☐ Denied.

- ☐ Insufficient documentation.
☐ Household income exceeds claimed expenses.
☐ Failed to complete affidavit.
☐ Failed to provide documentation.
☐ Other

☐ If the Applicant does not amend the application and provide the missing information or pay the filing fee within 30 days of the date this Order is mailed, the underlying Petition is dismissed pursuant to this Order.

Any ex parte order issued will no longer be valid if petition is dismissed.

IT IS SO ORDERED, this _____ day of _____, _____.

Remit payment

to: ☐

Cashier's Office, 500

N. King Street,
Wilmington, DE

19801

Judge/Commissioner Print Name

Judge/Commissioner Signature

☐ Applicant must pay all fees and costs associated with the filing and notice of this action. If payment in the amount of \$ _____ is not made to the cashier's office

by _____, the underlying Petition is dismissed pursuant to this Order.

☐ 400 Court Street,
Dover, DE 19901

☐ 100 East
Market
Street,
Georgetown,
DE 19947

Date
mailed:
